

26VECV00519 26VECV00519

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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

MARTIN ORTEGA DELGADO,

Plaintiff,

vs.

JAB
LOGISTICS LLC; ABC TRANSPORT LLC; CHRISTOPHER E FIGUEROA SALGUERO; CARLOS RODRIGUEZ; and DOES 1 to 20,

Defendants.

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CASE NO.: 26VECV00519

ORDER

GRANTING IN PART DEFENDANT JAB LOGISTICS LLC'S MOTION TO COMPEL FURTHER
RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE

I.

BACKGROUND

Plaintiff Martin Ortega

Delgado ("Plaintiff") filed this motor vehicle tort action against Defendants Jab Logistics LLC ("Jab"), ABC Transport LLC ("ABC"), Christopher E Figueroa Salguero ("Salguero"), and Carlos Rodriguez ("Rodrigeuz"). Plaintiff alleges Salguero negligently operated his vehicle and collided into Plaintiff's vehicle. Plaintiff alleges Rodriguez was the registered owner of the trailer negligently operated by Salguero. Plaintiff alleges Jab and ABC were the registered owners of the tractor negligently operated by Salguero. Plaintiff alleges Salguero was working in the course and scope of his employment with Jab at the time of the subject collision.

Jab moves to compel

Plaintiff's further responses to its Requests for Production of Documents, Set One ("RFPs").

II.

PROCEDURAL

HISTORY

On January

27, 2026, Plaintiff filed a Complaint alleging (1) Motor Vehicle tort and (2) Negligence.

On April 3,

2026, Jab and Salguero filed an Answer.

On April 6,

2026, ABC filed an Answer and Cross-Complaint.

On August 4,

2026, Jab filed the instant Motion.

On August 24,

2026, Plaintiff filed an untimely Opposition. The Court will exercise its discretion to consider it.

On August 25,

2026, Jab filed a Reply.

III.

LEGAL STANDARD

A.

Request

for Production of Documents

In responding

to a request for production of documents, a party must provide one of the following: (1) a legally adequate statement of compliance; (2) a statement of inability to comply; or (3) an objection to the particular demand. (See Code Civ. Proc. § 2031.210(a).) [1] If any objections are made, they must: (1) “[i]dentify with particularity any document ... falling within any category of item in the demand to which an objection is being made”; and (2) “[s]et forth clearly the extent of, and the specific ground for, the objection.” 2 (Id.

at § 2031.240(b).) A statement that the responding party is unable to comply with a particular demand “shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand”; “shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party”;² and “shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.” (Id. at § 2031.230.)³

A party who

believes a responding party has served (1) an incomplete statement of compliance, (2) an inadequate, incomplete, or evasive statement of compliance, or (3) an unmeritorious objection can move for an order compelling further responses but must “set forth specific acts showing good cause justifying the discovery sought by the demand.” (See id. at §§ 2031.310(a)-(b)(1).)

IV.

MEET AND CONFER

Before

bringing a motion to compel further responses to any discovery request, the moving party must make efforts to meet and confer in good faith and submit a declaration showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion. (See Code Civ. Proc. §§ 2016.040, 2031.310(b)(2), 2030.300(b), 2033.290(b).) Failure to make such attempt constitutes “misuse of discovery process”. (See Code Civ. Proc. § 2023.010(i) [amended eff. 1/1/26].)

“A reasonable

and good-faith attempt at informal resolution...requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1439.) In evaluating whether a meet and confer was reasonable and in good faith, “[a]n evaluation of whether, from the perspective of a reasonable person in the position of the discovering party, additional effort appeared likely to bear fruit, should also be considered.” (Clement v. Alegre (2009)

Jab's counsel

attests she sent Plaintiff's counsel a meet and confer letter and that Plaintiff's counsel did not answer their scheduled meet and confer phone call twice. (See Declaration of Kayla K. Smith filed August 4, 2026 ("Smith Decl."), ¶¶ 5, 7-9, Exs. C-D.) Thus, the Court finds Jab satisfied their meet and confer obligation and reminds Plaintiff's counsel that failure to meet and confer is a sanctionable abuse of discovery pursuant to Code of Civil Procedure §§ 2023.010 and 2023.020.

V.

ANALYSIS

A.

No. 20

"Any and all documents concerning any insurance or disability claims you have made concerning the incident which is the subject of your Complaint in this action." (Sep. Stmt. No. 20.)

Plaintiff

asserts the following objections: insurance privacy under Valley Bank of Nevada v. Sup. Ct. (1975) 15 Cal.3d 652, 656, relevance, not reasonably calculated to lead to the discovery of admissible evidence since it is not limited to payments for medical services, and collateral source rule. (See id.)

Jab argues

insurance and disability claims for the subject injuries are relevant. Additionally, because Plaintiff has stated he may pursue a loss-of-future earnings claim, any disability payments for a diminished ability to work are relevant to damages. (See id.)

Plaintiff

argues this Motion is based on Jab's incorrect belief Plaintiff has reserved a wage loss claim while refusing to produce the documents that would allow Jab to test it. Plaintiff argues his verified, operative response to Form Interrogatory No. 8.1 states: "Plaintiff is not making a claim for loss wages."

(See Opp. at 3: 9-13; Declaration of Anita Keshishyan filed August 24, 2026 ("Keshishyan Decl."), ¶ 3, Ex. 1.) Plaintiff also argues he has identified his automobile insurance carrier with the policy number and limits and his health insurance policy number. (See Opp., at 4:1-7.) Plaintiff reasserts that No. 20 is not limited to payments for medical treatment at issue and instead reaches every document including collateral source payments and private insurance information. (See id., at 10:13-20.)

Jab argues

the documents may reflect prior injury and thus bear on causation, credibility of Plaintiff's claimed injuries and extent of damages. (See Reply at 6:3-14.)

The Court

finds further response to the disability claims portion of the request is not warranted. The Court notes the Complaint alleges Plaintiff has suffered wage loss. (See Compl., at 3, No. 11.) However, Plaintiff has sworn in his verified discovery response that he is not making a claim for lost wages. Thus, the Court finds Jab's basis for compelling a further response as to Plaintiff's disability claims/payments is not justified.

However, the

Court finds further response with respect to the insurance claims portion of the request is warranted. Insurance claims relevant to the subject injury are discoverable. Whether Plaintiff has already disclosed his insurance policy number in other discovery responses has no bearing on this request, as he must still provide a code-complaint response to this request pursuant to § 2031.210(a)(1)(2). The Court therefore overrules Plaintiff's objections. The collateral source rule does not bar discovery outright, however it is (1) a substantive rule of damages, under which a personal injury plaintiff can still recover full damages even though they already have received compensation from such collateral sources, and (2) a rule of evidence which precludes introduction of evidence of plaintiff being compensated by a collateral source unless there is a persuasive showing that such evidence is of substantial probative value for purposes other than reducing damages. (See *Arambula v. Wells* (1999) 72 Cal.App.4th 1006, 1015.) Additionally, Plaintiff's insurance objection pursuant to *Griffith v. State Farm Mutual Auto Ins. Co.* (1990) 230 Cal.App.3d 59, 65-71, is not applicable here. That case concerned claimants seeking to have an insurer disclose a third party's policy limits, which is not the case here.

Thus, the
Court GRANTS IN PART Jab's Motion as to No. 20.

B.
No. 21

"Any and all
documents that evidence your earnings from January 1, 2019, through the
present." (Sep. Stmt. No. 20.)

Plaintiff's
response objects on grounds that he is "not presently asserting a loss of
earnings claim at this time. Accordingly, this request violates Plaintiff's
right to privacy protected pursuant to the Cal. Const., Article I, §1." (Id.)
Plaintiff also asserts a tax privilege. (See id.)

Jab argues Plaintiff
responded to Form Interrogatory No. 8.8 that he may have sustained a loss of
income or earning capacity from the incident. Jab argues he cannot reserve a
wage-loss claim while withholding the documents and thus his earnings from
January 1, 2019, to the present are relevant. (Id.)

Plaintiff
argues his response to No. 8.8, which asks whether Plaintiff "will lose income
in the future as a result of the INCIDENT", was "Unknown at this time." (See
Keshishyan Decl., ¶ 3, Ex. 1.) Plaintiff argues he has affirmatively disclaimed
any wage loss claim in the preceding interrogatory responses and this response means
he cannot presently attribute any future income loss to the incident. (See
Opp. at 7:14-19.) Plaintiff reasserts the request is irrelevant, overbroad, and
subject to privacy and tax privileges. (See id., at 8:10-9:10.)

The Court
finds further response to No. 21 is warranted. Although Plaintiff has sworn
under oath he is not pursuing a claim for lost wages in response to Form
Interrogatory 8.1, that only applies to lost wages up to the date of his
verified response to that interrogatory. His response to Form Interrogatory 8.8
left open the possibility of pursuing lost wages after the date of his
response. Thus, any responsive documents covering the period of time since that
response is discoverable. Accordingly, this request is overbroad as framed and
Plaintiff's further response shall only cover the period of time between his

verified response to Form Interrogatory No. 8.8 and the date of this Order.

The Court GRANTS

IN PART Jab's Motion as to No. 21.

C.

No. 24

"Any and all

documents which support your contention that you have incurred property damage as a result of the incident which is the subject of your Complaint on file herein." (Sep. Stmt. No. 24.)

Plaintiff

asserted objections and "All non-privileged documents responsive to this request which are currently in Responding Party's possession, custody or control will be produced. Attached hereto are copies of photographs related to the Subject Incident." (Id.)

The Court

finds no further response is warranted to No. 24 as Plaintiff's substantive response is code compliant. (See Code Civ. Proc. §§ 2031.210(a)(1), 2031.220.)

The Court

DENIES the Motion as to No. 24.

D.

No. 29

"Any and all

documents that identify or describe your job duties for any and all jobs you had at the time of and since the incident alleged in the Complaint on file herein." (Sep. Stmt. No. 29.)

Plaintiff

responded "Objection. Plaintiff is not presently asserting a loss of earnings claim at this time. Accordingly, this request violates Plaintiff's right to privacy protected pursuant to the Cal. Const., Article I, § 1." (Id.)

Jab argues Plaintiff's

job duties bear on his claimed injuries, both because they show whether and how those injuries limit his activities and because they may reveal a mitigating factor for damages Plaintiff attributes solely to this collision. Jab also argues his stated potential loss-of-earning-capacity claim makes the information further relevant to damages. (See *id.*)

Plaintiff

argues further response to No. 29 is not warranted for the same reasons set forth under No. 21. Additionally, Plaintiff argues Jab does not show good cause on the basis that his job duties may reveal another potential cause of his injuries. Moreover, Plaintiff has disclosed his employment in his verified interrogatory responses. (See Opp. at 9:11-18.)

Jab argues Plaintiff's

response to Form Interrogatory 2.6 is only that he is a baker for Vons. Jab argues it is entitled to job descriptions or employer records to explore its theory plaintiff's occupational activities may constitute a contributing cause of claimed injuries. (See Reply at 5:3-13.)

The Court

finds further response is warranted to No. 29. The Court agrees Jab can discover information relevant to causation – and effect – of Plaintiff's claimed injuries. The Court acknowledges the request encompasses personnel records, which are within the scope of the protection provided by the state and federal Constitutions." (San Diego Trolley, Inc. v. Superior Court (2001) 87 Cal.App.4th 1083, 1097, overruled on other grounds; see also Board of Trustees v. Superior Court (1981) 119 Cal.App.3d 516, 530.) Williams v. Superior Court (2017) 3 Cal.5th 531, 541, and Hill v. National Collegiate Athletic Assn. (1994) 7 Cal.4th 1, 35, describe the applicable test when limiting discovery based on privacy interests. The three-pronged Hill test, applied to discovery disputes via Williams, proceeds as follows:

The party asserting a privacy right must establish [1] a legally protected privacy interest, [2] an objectively reasonable expectation of privacy in the given circumstances, and [3] a threatened intrusion that is serious. ([Hill,] at pp. 35–37) The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or

protective measures that would diminish the loss of privacy. A court must then balance these competing considerations. (Id. at pp. 37–40)

(Williams, 3 Cal.5th at p. 552.)

Plaintiff has not established its privacy right under the Hill test. Moreover, because the request encompasses personnel records showing only Plaintiff's job duties, the Court believes it unlikely Plaintiff could show a threatened, serious intrusion that outweighs Jab's right to discover information that may support its theory. Additionally, the Court overrules Plaintiff's tax privilege objection, as it is not implicated by this request, and his objection based on non-assertion of a loss of earnings claim. Nevertheless, in an abundance of caution regarding Plaintiff's privacy interest in his personnel records, the Court orders the parties to submit a Proposed Stipulated Protective Order for the Court's approval so that any documents produced in response to this request may be produced pursuant to it.

Thus, the Court GRANTS Jab's Motion as to No. 29.

VI. DISCOVERY SANCTIONS

The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, interrogatories, or requests for admission, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (See Code Civ. Proc. §§ 2031.310(h), 2030.300(d), 2033.290(c).)

Jab requests discovery sanctions in the amount of \$3,660.00. This total comprises 9.5 hours to meet and confer and prepare the Motion, 2.5 hours to prepare the Reply and attend the hearing, and a \$60.00 filing fee. (See Smith Decl., ¶ 11.) Counsel's

hourly rate is \$300.00. (See id.)

Plaintiff

requests discovery sanctions of \$2,100.00.

The Court

declines to award sanctions as both parties acted with substantial justification in making and opposing the Motion.

VII.

CONCLUSION

Based on the

foregoing, the Court GRANTS IN PART Jab's Motion to Compel Further Responses as to RFP Nos. 20 as to insurance claims, 21, and 29, which shall be responded to pursuant to a Stipulated Protective Order. The Court DENIES the Motion as to No. 24. Plaintiff is ordered to provide further code complaint responses on or before September 18, 2026. The Court denies the parties' requests for discovery sanctions.

IT

IS SO ORDERED.

DATED: September 1, 2026

Hon. Michael R. Amerian

Judge,

Superior Court

[1] All statutory references

are to California codes unless stated otherwise.